



COMMONWEALTH OF MASSACHUSETTS
OFFICE OF THE CHIEF MEDICAL EXAMINER
UNIVERSITY OF MASSACHUSETTS MEDICAL CENTER
55 LAKE AVENUE NORTH
WORCESTER, MASSACHUSETTS 01005

AUTOPSY REPORT

Case No. CME 93-366

Name Gary Weems Age 33 Race B Sex M
Homeless (Middlesex Shelter)

Date and Time of Death 11-6-93 8:39 AM

Date and Time of Autopsy 11-8-93 11:00 AM

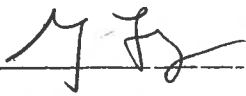
Medical Examiner Feigin

County and District Middlesex

CAUSE OF DEATH: Opiate intoxication

MANNER OF DEATH:

- ☐ Natural
☐ Accident
☐ Suicide
☐ Homicide
☒ Undetermined


Pathologist Gerald Feigin
Tewksbury Hospital

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AUTOPSY

The autopsy was performed at Tewksbury Hospital, Tewksbury, MA on November 8, [REDACTED]

Identification: Made by shelter personnel.

Clothing: The body is received with brown jacket, T-shirt, briefs, sweatpants, and black high top athletic shoes.

EXTERNAL EXAMINATION

The body is that of a dark-skinned male measuring 73 inches and weighing an estimated 190 lbs. There is full rigor and lividity is present posteriorly. The hair is dark and short. The face has no marks of injury. There is a 1 inch scar over the lateral upper orbital ridge on the left. The eyes have brown irides, 5 mm pupils, and clear conjunctivae. There is a mustache present. The teeth are natural and there is no trauma to the mouth. The neck, chest, abdomen, lower extremities, back and buttocks are free of change. There needle tracts present in the left antecubital fossa. The penis is circumcised and testes are present within the scrotum.

INTERNAL EXAMINATION

The body is opened with a Y-shaped incision revealing a 1 inch panniculus. All of the cavities are dry and lined by smooth fibromembranous tissue, without old or recent inflammatory process. The mediastinum and retroperitoneum are free of change.

Cardiovascular system: The heart weighs 380 grams. The epicardial surface is smooth. The left anterior descending coronary artery is 75% obstructed, 1.5 cm from the origin. The circumflex and right are free of change. The valves are thin and delicate and the myocardium is red brown, without hemorrhage, softening or fibrosis. The aorta and major arteries are intact and free of atherosclerosis. The veins are free of thrombi and emboli.

Respiratory system: The right lung weighs 870 grams. The left 820 grams. The pleura is dark purple. The parenchyma is edematous and congested, without tumor, fibrosis or consolidation noted. The tracheobronchial tree is unobstructed and lined by tan mucosa. The neck organs are free of trauma.

Digestive system: The tongue is left in-situ. The esophagus is lined by gray, granular mucosa. The stomach contains 100 cc of clear liquid. The mucosa and wall are free of change. The small and large intestine, anus, rectum and appendix are unremarkable. The liver weighs 1,610 grams. The capsule is intact and the parenchyma is brown and of normal consistency. The gallbladder contains 5 cc of bile. No stones are present. The pancreas and submandibular glands are tan and lobular.

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Lymphoreticular system: The thymus is small and tan. The spleen weighs 230 grams. The capsule is intact and the parenchyma is free of change. Lymph node enlargement is not noted. There is a 1 cm, accessory spleen present.

Endocrine system: The pituitary is of normal size, and left in-situ. The adrenals are of normal size, have thin yellow cortices, and gray medullae. The thyroid contains a moderate amount of colloid and is of normal size, shape and consistency.

Urogenital system: The combined weight of the kidneys is 310 grams. The cortical surfaces are smooth. The medullary pyramids are pointed. The calyces, pelves, and ureters are free of change. The bladder is contains 200 cc of urine. The mucosa and wall are free of change. The prostate is rubbery and of normal size. The testes are left in-situ.

Musculoskeletal system: The muscles are red brown and firm. No fractures are noted.

Central nervous system: The scalp, skull, dura, leptomeninges, and cortical surface of the 1,200 gram brain show no evidence of trauma. Cut section reveals no abnormalities within the cerebral hemispheres, pons, cerebellum, midbrain or medulla.

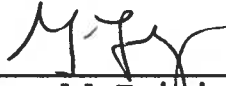
GF/drh
12/4/93

HISTORY

The decedent was a 33 year old male who had been drinking with a friend in Lowell. He was found approximately 4 hours later unresponsive in his friends yard.

OPINION

The decedent died of opiate intoxication. The manner of death is undetermined.



Gerald Feigin, M.D.
Forensic Pathologist

GF/drh
12/4/93

Riccobene, Lisa (CME)

From: Lynch, Adrienne (NOR)
Sent: Tuesday, August 05, 2014 6:58 PM
To: Riccobene, Lisa (CME)
Cc: Chaulk, Sarah (NOR); Griffith, Sean (NOR)
Subject: Deceased - Gary Weems

Hi, Lisa,

In connection to the above-referenced OCME case, I am writing to confirm that the Middlesex District Attorney's Office provides authorization for a copy of the Polaroid photo of Gary Weems, which is contained in the OCME file, to be

because Sarah Chaulk is on vacation this week.

Thank you for your consideration in this matter.

Best regards,
Adrienne Lynch
Middlesex District Attorney's Office

Riccobene, Lisa (CME)

From: Faherty, Jackie (CME)
Sent: Monday, August 04, 2014 4:15 PM
To: Riccobene, Lisa (CME); Nields, Henry (CME)
Subject: Fwd: Gary Weems

FYI

Sent from my iPhone

Begin forwarded message:

[REDACTED]
Date: August 4, 2014 at 4:13:09 PM EDT

[REDACTED]@gmail.com>
[REDACTED]

Subject: Gary Weems

I am writing to follow-up on the conversation we just had in the lobby of the OCME regarding your father, Gary Weems. It is my understanding that you are seeking to "ID" your father by looking at a photograph maintained at the OCME and to find an explanation for why there are 2 different numbers listed on his report. You also mentioned that you were interested in a police report. As we discussed, the OCME, pursuant to its regulations will provide a copy of its autopsy report to the legal next of kin. However, it is our practice not to disseminate documents not generated by our office such as police reports and not to disseminate decedent photographs unless such disclosure is approved by the Chief Medical Examiner. As we discussed, the DA's office has been provided with the photograph as well. As I explained, I am unable to provide you with the photograph but if you continue to be interested in seeing our copy, I would be happy to speak with the Chief to obtain approval and then we could set up a time for you to come in and view it with a medicolegal investigator.

Additionally, I did review the report per your request and noted that one page did have a different case number listed as you described. I then reviewed the medical examiner's notes related to the autopsy to confirm that the information listed on the notes was the same information that was transcribed onto that page of the report. It was and as a result, I conclude that the number was a typographical error and that the page does contain accurate descriptors from the medical examiner's examination. I have had

[REDACTED]
review them along with your copy of the report.

I would be happy to speak with you further about this issue. Additionally, if ADA Griffith would like any additional information or documents from my office so that he can better assist you, we can send those to him as well. Please let me know if you have any questions.

Sincerely,

Jacqueline Faherty
General Counsel



The Commonwealth of Massachusetts
Office of the Chief Medical Examiner



Deval L. Patrick
Governor

Headquarters

Henry M. Nields, MD, PhD
Chief Medical Examiner

Andrea J. Cabral
Secretary of Public Safety

General Office Numbers

July 11, 2014

Jestina Weems

Dear Ms. Weems:

As requested please find enclosed:

- ☒ Complete autopsy report
- ☒ Toxicology report
- ☐ Toxicology report only - no autopsy done

If you have any further questions, please do not hesitate to contact me.

Sincerely,

Lynda Powers
Administrative Assistant

OFFICE OF THE CHIEF MEDICAL EXAMINER

UNIVERSITY OF MASSACHUSETTS MEDICAL CENTER

WORCESTER, MASSACHUSETTS 01605

PRELIMINARY AUTOPSY NOTES

HISTORY:	MEDICAL EXAMINER:				
	POLICE PRESENT:	HT: 73" WT: 190			
	<table border="1"> <tr> <td>HOSPITAL TREATMENT</td> <td>NEEDLE PUNCTURES</td> </tr> <tr> <td> ☐ Laryn-Trach Tube ☐ Naso-Gast. Tube ☐ Oral Airway ☐ Thoracotomy ☐ Chest Tube ☐ Laparotomy ☒ Cut Down ☐ Defib. Marks </td> <td> ☐ R. Subclav. ☐ L. Subclav. ☐ Ant. Chest ☐ R. Ant. Elbow ☐ L. Ant. Elbow ☐ R. Hand ☐ Inguinal: L- ☐ Ankle: L- </td> </tr> </table>		HOSPITAL TREATMENT	NEEDLE PUNCTURES	☐ Laryn-Trach Tube ☐ Naso-Gast. Tube ☐ Oral Airway ☐ Thoracotomy ☐ Chest Tube ☐ Laparotomy ☒ Cut Down ☐ Defib. Marks
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EXTERNAL DESCRIPTION: Scalp Hair <i>dk</i> Length <i>5k</i> Forehead Irides <i>br</i> Pupils <i>3</i> Conjunctivae Arcus Ears Face Upper Teeth <i>7 net</i> Lower Teeth Lips Mustache <i>+</i> Neck Chest Abdomen Genitalia <i>ce</i> Arms Wrist <i>cut-</i> Hands Legs <i>few small scars R. knee-</i> Ankles Back Rigor Lividity	CLOTHING:	WITNESSES: CHAIN OF CUSTODY:			
	DATE OF AUTOPSY: _____				
	PRONOUNCED: _____ A.R.S. _____				
	DIAGNOSIS:				
NAME OF DECEASED:	MANNER OF DEATH: CASE NUMBER: 933665				

R-forearm cross tattoo

cut-

few small scars R. knee-

COMMONWEALTH OF MASSACHUSETTS
OFFICE OF THE CHIEF MEDICAL EXAMINER
PRELIMINARY AUTOPSY NOTES

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INTERNAL DESCRIPTION:

Subcutaneous Fat: *Y*

Aromatic Odor:

Rib Fractures:

Right:

Left:

Spine Fracture:

Pelvic Fracture:

Adhesions:

Peritoneal:

R. Pleural:

L. Pleural:

Pericardial:

TOXICOLOGICAL

Blood		
Urine		
Liver		

Blood Alcohol _____

Urine Alcohol _____

VITREOUS

Glucose _____

BUN _____

Na _____

K _____

Cl _____

CO₂ _____

MICRO

HEART (380) Coronaries: LAD 75% / 1.5 cm.
LC
R

Valves
Myocardium
Aorta

LUNGS (380) Pleura *dh.*
(820) P.A.
edone Bronchi
S.S.

LIVER (1610) Capsule
Margins
Size
Color
Consist.
G.B.
LN.

SPLEEN (230) Capsule
Consist.
S.S.

KIDNEYS (300) Cortex *sm.*
Renal Art.
Ureters
Arch.
Bladder

ADRENALS

STOMACH (Contents: 100 ml.) *beating*
Mucosa
Esophagus
Pancreas
Bowel
Appendix
Rugae

UTERUS
— Size
— Endometrium
— Ovaries
— Tubes

NECK
— Skin
— Muscle
— Lumen
— Mucosa
— Fracture
— Spine
— Oral Pharynx
— Nasopharynx
— Thyroid
— Tongue

SCALP
— Inj.
— Hem.
— Fracture
— Hem.

BRAIN (1200) L.M.
Vessels
S.S.

92-3665

POLICE DEPARTMENT
ARCAND DRIVE

CRIME/INCIDENT REPORT

(Print or Type only)

1 OF 1

☐ Initial Report

☒ Follow Up Report

REPORT #

93/1245

Crime or Incident Domestic Violence ☐

Sudden Death

Location of Crime or Incident
(Street & Number)

Geo
Code

Unit #

Code

Date & Time Reported

11/6/93

11:50 AM

Date & Time of Incident

11/6/93 0830

268 Appleton St REAR

Weapon, Tool, Force or Means Used (Describe)

Alcohol, Drugs ?

Reporting Officers

Badge #

1 L. Hunter

125

2 L. Busby

Victim (Firm Name if Business) Last, First, MI

Weems, Gary

Address

City

State

Sex

Age

Date of Birth

M

Phone/Home

Phone/Business

Middlesex St. Shelter

Make

Year

Model

Color

Reg #

State

VIN

Solvability Factors:

Code

W	Is there a witness to the crime?	Yes ☒	No ☐
S	Is a suspect named?	Yes ☐	No ☐
SD	Can a suspect be described	Yes ☐	No ☒
SL	Can a suspect be located?	Yes ☐	No ☒
SV	Can a suspect vehicle be identified?	Yes ☐	No ☒
P	Is stolen property traceable?	Yes ☐	No ☒
PE	Is physical evidence present?	Yes ☐	No ☒
MO	Is there a distinguishable M.O.	Yes ☐	No ☒

W Name

Newhall, Kenneth

Address

Middlesex St. Shelter

Phone

S Name

[Redacted]

D O B

SS#

SD Race

Age

Ht.

Wt.

Build

Hair

Eyes

Scars/Tattoos

Clothing

SL Home

Hangouts

Work

School

SV Make

Year

Model

Color

Reg #

State

VIN

P Item

Model

Serial Number

Specific Physical Description

RECEIVED

NOV 07 1993

PE (Please describe in detail)

LOWELL POLICE DEPT.

LOWELL POLICE DEPARTMENT

50 ARCAD DRIVE

LOWELL, MASSACHUSETTS 01852

FAX NUMBER
(508) 970-0455

FAX TRANSMITTAL FORM

DATE: 11 / 18 / 93

FAX TO: Medical Examiner

FAX NUMBER: 851-7321 X 2548

FROM: Lt Burns

NUMBER OF PAGES (including this transmittal page): 11

REMARKS: _____

If there is a problem with this



In all cases of death that require the attention of the Medical Examiner, and in cases of serious accidents where death is liable to result, the following form shall be filled out by the officer attending the same and immediately forwarded to the Superintendent of Police.

RECEIVED

NOV 8 / 1993

John J. Sheehan, Superintendent of Police

LOWELL POLICE DEPT.

Police Route No. 6 Date 11-6 19 93
Full name of person GARY WHEAMS
189 Middlebury St Lowell Mass
Age 33 ; Height 5'10" ; Weight 160 ; Comp. BLACK ; Hair BLACK
Eyes BROWN ; Beard or Mustache MUSTACHE ; Occupation UNEMPLOYED
Visible marks or scars on body TRACK MARKS ON ARMS
Description of clothing and property found on body BROWN COAT, T-SHIRT,
BLUE JEANS, BLACK SNEAKERS, WALLET CONTAINING I.D. AND PERSONAL
PAPERS
Place of Accident, or where body was found 291 SUMMER ST. (REAR)
Date of accident or death 11-6-93 Time 8:15 A.M.
Nature of accident or death ALCOHOL AND/OR DRUG OVERDOSE
Full name of person who discovered body KENNETH NEWHALL
St. Lowell
Person or body moved to (BODY AND SCENE SECURED AT THIS TIME) Medical Examiner notified
Conveyance used _____
Name of Physician called _____
Names of officers connected with the removal of body _____
Full name of nearest relative or friend of deceased NADINE WHEAMS
7 WALTER TERRACE SOMERVILLE, MASS.

NARRATIVE List additional witnesses, suspects, vehicles etc. Describe Briefly
(Use continuation Sheets if necessary)

On listed date and time, car #6 responded to the rear of the unemployment office (# 291 Summer St.) regarding a possible sudden death. Upon arrival, witness (Kenneth Newhall 189 Middlesex St Lowell - 11/8/50) stated he had located his friend (victim) lying face down in the grass. Witness further stated that they had both been drinking since approx 4:00 P.M., 11/5/93 until approx 3:30 A.M., 11/6/93. Newhall stated he left victim for approx 4 1/2 hours and returned to same location where located victim.

Victim was clothed in blue jeans, black sweater, T-shirt and brown coat. Track marks were visible on left arm of victim. A wallet containing victim's I.D. and personal papers were located in victim's coat pocket.

At approx 8:45 A.M., car #6 was relieved by portable #2 awaiting arrival of C.I.B. No signs of foul play at this time.